

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 4300

By: Pae of the House

and

Reinhardt of the Senate

COMMITTEE SUBSTITUTE

An Act relating to children; amending 10 O.S. 2021, Sections 404 and 404.1, as amended by Section 343, Chapter 486, O.S.L. 2025 (10 O.S. Supp. 2025, Section 404.1), which relate to the Oklahoma Child Care Facilities Licensing Act; permitting electronic notice; modifying provision related to criminal history record searches; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 404, is amended to read as follows:

Section 404. A. 1. The Department of Human Services, in consultation with the Oklahoma Commission on Children and Youth, shall appoint advisory committees of representatives of child care facilities and others to recommend minimum requirements and desirable standards for promulgation by the Department.

2. Committee members shall be appointed for a three-year term, with a two-consecutive-term limit. The committees shall include

1 representation for all categories of facilities licensed by the
2 Department and shall be comprised as follows:

3 a. the Residential Children's Services subcommittee shall
4 include at a minimum:

5 (1) a representative of a statewide organization
6 representing children in care arrangements
7 outside their own home,

8 (2) a representative of a statewide organization
9 providing residential services to youth in state
10 custody,

11 (3) a recipient or former recipient of youth services
12 for children in state custody,

13 (4) a representative of a statewide organization
14 promoting adoption services,

15 (5) a parent or guardian providing foster care to a
16 child or children in state custody,

17 (6) a representative from a nonpublic, long-term
18 residential care facility for children in state
19 custody,

20 (7) a representative from an organization promoting
21 the interests of Native American children in
22 state custody,

23 (8) a provider of medical services for children,

24 (9) a practicing behavioral health services provider,

- 1 (10) a representative from an agency providing child-
2 placing services, and
- 3 (11) other appropriate representatives at the
4 discretion of the Department of Human Services
5 and Commission on Children and Youth,
- 6 b. the Child Care Centers subcommittee shall include at a
7 minimum:
- 8 (1) a representative of a statewide organization
9 advocating for children in care arrangements
10 outside their own home,
- 11 (2) a representative of a statewide organization
12 conducting programs for school-age children,
- 13 (3) a parent or guardian with a child attending a
14 licensed child care facility,
- 15 (4) a representative of a licensed child care
16 facility in a rural area,
- 17 (5) a representative of a statewide organization
18 advocating for licensed child care facilities
19 owned or operated by Native Americans,
- 20 (6) a representative of a licensed child care
21 facility in an urban/suburban area,
- 22 (7) a representative of a statewide organization
23 advocating for programs provided under the Head
24 Start program,

1 (8) a representative with knowledge of child care
2 programs offered by career technology center in
3 this state,

4 (9) a representative of a statewide organization
5 advocating for early childhood education
6 programs,

7 (10) a representative of a statewide organization
8 providing resources and referrals to child care
9 facilities,

10 (11) a provider of medical services for children, and

11 (12) other appropriate representatives at the
12 discretion of the Department of Human Services
13 and Commission on Children and Youth,

14 c. the Child Care Homes subcommittee shall include at a
15 minimum:

16 (1) a representative of a statewide organization
17 advocating for children in care arrangements
18 outside their own home,

19 (2) a parent or guardian with a child receiving care
20 at a licensed child care home,

21 (3) a representative of a licensed child care home in
22 a rural area,
23
24

- (4) a representative of a statewide organization advocating for licensed child care facilities owned or operated by Native Americans,
- (5) a representative of a licensed child care home in an urban/suburban area,
- (6) a representative of a statewide organization advocating for early childhood education programs,
- (7) a representative of a statewide organization providing resources and referrals to child care facilities,
- (8) a provider of medical services for children, and
- (9) other appropriate representatives at the discretion of the Department of Human Services and Commission on Children and Youth, and

d. the Quality Rating and Improvement System subcommittee shall include representatives of child care centers and child care homes currently licensed by the State and other members as determined by the Department of Human Services and the Commission on Children and Youth.

3. The Department shall create a Child Care Facility Peer Review Board whose purpose shall be to participate in the Department's grievance process. A majority of the Board shall be

1 representatives of child care facilities. The Department shall
2 promulgate rules specifying the duties of the Child Care Facility
3 Peer Review Board in the grievance process.

4 4. The advisory committee shall designate two people to serve
5 on the Department's Stars Administrative Review Panel. At least one
6 designee shall be the owner or operator of a licensed child care
7 center.

8 B. Child care facilities shall not allow children to be left
9 alone in the care of any person under eighteen (18) years of age
10 without supervision or sixteen (16) years of age with supervision as
11 delineated by the Department's rules. Child care centers and family
12 child care homes shall not:

13 1. Use soft or loose bedding, including, but not limited to,
14 blankets, in sleeping equipment or in sleeping areas used only for
15 infants;

16 2. Allow toys or educational devices in sleeping equipment or
17 in a sleeping area used only for infants; or

18 3. Place a child in sleeping equipment or in a sleeping area
19 which has not been previously approved for use as such by the
20 Department.

21 C. The Department shall promulgate rules establishing minimum
22 requirements and desirable standards as may be deemed necessary or
23 advisable to carry out the provisions of the Oklahoma Child Care
24 Facilities Licensing Act.

1 D. Such rules shall not be promulgated until after consultation
2 with the State Department of Health, the State Department of
3 Education, the Oklahoma State Bureau of Investigation, the State
4 Fire Marshal, the Commission on Children and Youth, the Oklahoma
5 Department of Mental Health and Substance Abuse Services and any
6 other agency deemed necessary by the Department. Not less than
7 sixty (60) days' notice, electronically, or as requested by regular
8 mail, shall be given to all current licensees before any changes are
9 made in such rules.

10 E. In order to improve the standards of child care, the
11 Department shall advise and cooperate with licensees, the governing
12 bodies and staff of licensed child care facilities and assist the
13 staff through advice of progressive methods and procedures, and
14 suggestions for the improvement of services.

15 F. The Department may participate in federal programs for child
16 care services, and enter into agreements or plans on behalf of the
17 state for that purpose, in accordance with federal laws and
18 regulations.

19 SECTION 2. AMENDATORY 10 O.S. 2021, Section 404.1, as
20 amended by Section 343, Chapter 486, O.S.L. 2025 (10 O.S. Supp.
21 2025, Section 404.1), is amended to read as follows:

22 Section 404.1. A. On and after November 1, 2013:
23
24

1 1. Prior to the issuance of a permit or license, owners and
2 responsible entities making a request to establish or operate a
3 child care facility shall have:

4 a. an Oklahoma State Courts Network search conducted by
5 the Department,

6 b. a Restricted Registry search conducted by the
7 facility,

8 c. a national criminal history records search conducted
9 pursuant to paragraph 10 of this subsection,

10 d. a criminal history records and sex offender registry
11 search conducted by an authorized source, when the
12 individual has lived outside this state within the
13 last five (5) years,

14 e. a search of the Department of Corrections' files
15 maintained pursuant to the Sex Offenders Registration
16 Act and conducted by the Department of Human Services,

17 f. a search of any available child abuse and neglect
18 registry within a state the individual has resided in
19 within the last five (5) years,

20 g. search of the nontechnical services worker abuse
21 registry maintained by the State Department of Health
22 pursuant to Section 1-1950.7 of Title 63 of the
23 Oklahoma Statutes, and
24

1 h. a search of the community services worker registry
2 maintained by the Department of Human Services
3 pursuant to Section 1025.3 of Title 56 of the Oklahoma
4 Statutes;

5 2. Prior to the employment of an individual:

6 a. an Oklahoma State Courts Network search, conducted by
7 the Department, shall be requested and received by the
8 facility; provided however, if twenty-four (24) hours
9 has passed from the time the request to the Department
10 was made, the facility may initiate employment,
11 notwithstanding the provisions of this paragraph,

12 b. a Restricted Registry search shall be conducted by the
13 facility with notification of the search submitted to
14 the Department,

15 c. a national criminal history records search pursuant to
16 paragraph 10 of this subsection shall be submitted,

17 d. a criminal history records and sex offender registry
18 search conducted by an authorized source, when the
19 individual has lived outside this state within the
20 last five (5) years, shall be submitted to the
21 Department,

22 e. a search of the Department of Corrections' files
23 maintained pursuant to the Sex Offenders Registration
24

1 Act shall be conducted by the Department and received
2 by the facility,

3 f. a search of any available child abuse and neglect
4 registry within a state the individual has resided in
5 within the last five (5) years,

6 g. search of the nontechnical services worker abuse
7 registry maintained by the State Department of Health
8 pursuant to Section 1-1950.7 of Title 63 of the
9 Oklahoma Statutes, and

10 h. a search of the community services worker registry
11 maintained by the Department of Human Services
12 pursuant to Section 1025.3 of Title 56 of the Oklahoma
13 Statutes;

14 3. Prior to allowing unsupervised access to children by
15 employees or individuals, including contract employees and
16 volunteers and excluding the exceptions in paragraph 8 of this
17 subsection:

18 a. Oklahoma State Courts Network search results,
19 conducted by the Department, shall be received by the
20 facility,

21 b. a Child Care Restricted Registry search shall be
22 conducted by the facility with notification of the
23 search submitted to the Department,
24

- c. national criminal history records search results pursuant to paragraph 10 of this subsection shall be received by the facility,
- d. a criminal history records and sex offender registry search conducted by an authorized source, when the individual has lived outside this state within the last five (5) years shall be submitted to the Department,
- e. a search of the Department of Corrections' files maintained pursuant to the Sex Offenders Registration Act shall be conducted by the Department and received by the facility,
- f. a search of any available child abuse and neglect registry within a state the individual has resided in within the last five (5) years,
- g. search of the nontechnical services worker abuse registry maintained by the State Department of Health pursuant to Section 1-1950.7 of Title 63 of the Oklahoma Statutes, and
- h. a search of the community services worker registry maintained by the Department of Human Services pursuant to Section 1025.3 of Title 56 of the Oklahoma Statutes;

1 4. Prior to the issuance of a permit or license and prior to
2 the residence of adults who subsequently move into a facility,
3 adults living in the facility excluding the exception in paragraph 7
4 of this subsection shall have:

- 5 a. an Oklahoma State Courts Network search conducted by
6 the Department and the facility shall be in receipt of
7 the search results,
- 8 b. a Restricted Registry search conducted by the facility
9 with notification of the search submitted to the
10 Department,
- 11 c. a national criminal history records search conducted
12 pursuant to paragraph 10 of this subsection,
- 13 d. a criminal history records and sex offender registry
14 search conducted by an authorized source, when the
15 individual has lived outside this state within the
16 last five (5) years,
- 17 e. a search of the Department of Corrections' files
18 maintained pursuant to the Sex Offenders Registration
19 Act conducted by the Department and received by the
20 facility,
- 21 f. a search of any available child abuse and neglect
22 registry within a state the individual has resided in
23 within the last five (5) years,

g. search of the nontechnical services worker abuse registry maintained by the State Department of Health pursuant to Section 1-1950.7 of Title 63 of the Oklahoma Statutes, and

h. a search of the community services worker registry maintained by the Department of Human Services pursuant to Section 1025.3 of Title 56 of the Oklahoma Statutes;

5. Children who reside in the facility and turn eighteen (18) years of age excluding the exception in paragraph 7 of this subsection shall have:

a. an Oklahoma State Courts Network search conducted by the Department,

b. a Restricted Registry search conducted by the facility with notification of the search submitted to the Department,

c. a national criminal history records search conducted pursuant to paragraph 10 of this subsection, and

d. a search of the Department of Corrections' files pursuant to the Sex Offenders Registration Act conducted by the Department and received by the facility;

6. Prior to review of or access to fingerprint results, owners, responsible entities, directors, and other individuals who have

1 review of or access to fingerprint results shall have a national
2 criminal history records search pursuant to paragraph 10 of this
3 subsection;

4 7. Provisions specified in paragraphs 4 and 5 of this
5 subsection shall not apply to residents who are receiving services
6 from a residential child care facility;

7 8. A national criminal history records search pursuant to
8 paragraph 10 of this subsection shall not be required for volunteers
9 who transport children on an irregular basis when a release is
10 signed by the parent or legal guardian noting their understanding
11 that the volunteer does not have a completed national criminal
12 history records search. The provisions in paragraph 3 of this
13 subsection shall not be required for specialized service
14 professionals who are not employed by the program and have
15 unsupervised access to a child when a release is signed by the
16 parent or legal guardian noting his or her understanding of this
17 exception. These exceptions shall not preclude the Department from
18 requesting a national fingerprint or an Oklahoma State Bureau of
19 Investigation name-based criminal history records search or
20 investigating criminal, abusive, or harmful behavior of such
21 individuals, if warranted;

22 9. A national criminal history records search pursuant to
23 paragraph 10 of this subsection shall be required on or before
24 November 1, 2016, for existing owners, responsible entities,

1 employees, individuals with unsupervised access to children, and
2 adults living in the facility, as of November 1, 2013, unless
3 paragraph 6 of this subsection applies;

4 10. The Department shall require a national criminal history
5 records search based upon submission of fingerprints that shall:

- 6 a. be conducted by the Oklahoma State Bureau of
7 Investigation and the Federal Bureau of Investigation
8 pursuant to Section 150.9 of Title 74 of the Oklahoma
9 Statutes and the federal National Child Protection Act
10 and the federal Volunteers for Children Act with the
11 Department as the authorized agency,
- 12 b. be submitted and have results received between the
13 Department and the Oklahoma State Bureau of
14 Investigation through secure electronic transmissions,
- 15 c. include Oklahoma State Bureau of Investigation rap
16 back, requiring the Oklahoma State Bureau of
17 Investigation to immediately notify the Department
18 upon receipt of subsequent criminal history activity,
19 and
- 20 d. be paid by the individual or the facility;

21 11. The Director of the Department, or designee, shall
22 promulgate rules that may authorize an exception to the
23 fingerprinting requirements for individuals who have a severe
24

1 physical condition which precludes such individuals from being
2 fingerprinted;

3 12. The Director of the Department, or designee, shall
4 promulgate rules that ensure individuals obtain a criminal history
5 records search, ~~not to include the re-submission of fingerprints,~~
6 not less than once during each five (5) year period;

7 13. Any individual who refuses to consent to the criminal
8 background check or knowingly makes a materially-false statement in
9 connection with such criminal background check shall be ineligible
10 for ownership of, employment of or residence in a child care
11 facility; and

12 14. The Office of Juvenile Affairs shall require national
13 criminal history records searches, as defined by Section 150.9 of
14 Title 74 of the Oklahoma Statutes, which shall be provided by the
15 Oklahoma State Bureau of Investigation for the purpose of obtaining
16 the national criminal history records search, including Rap Back
17 notification of and through direct request by the Office of Juvenile
18 Affairs on behalf of any:

- 19 a. operator or responsible entity making a request to
20 establish or operate a secure detention center,
21 municipal juvenile facility, community intervention
22 center or secure facility licensed or certified by the
23 Office of Juvenile Affairs,
24

- 1 b. employee or applicant of a secure detention center,
2 municipal juvenile facility, community intervention
3 center or secure facility licensed or certified by the
4 Office of Juvenile Affairs, or
- 5 c. persons allowed unsupervised access to children,
6 including contract employees or volunteers, of a
7 secure detention center, municipal juvenile facility,
8 community intervention center or secure facility
9 licensed or certified by the Office of Juvenile
10 Affairs.

11 B. 1. a. On and after September 1, 1998:

12 (1) any child-placing agency contracting with a
13 person for foster family home services or in any
14 manner for services for the care and supervision
15 of children shall also, prior to executing a
16 contract, complete:

17 (a) a foster parent eligibility assessment for
18 the foster care provider except as otherwise
19 provided by divisions (2) and (4) of this
20 subparagraph, and

21 (b) a national criminal history records search
22 based upon submission of fingerprints for
23 any adult residing in the foster family home
24 through the Department of Human Services

1 pursuant to the provisions of Section 1-7-
2 106 of Title 10A of the Oklahoma Statutes,
3 except as otherwise provided by divisions
4 (2) and (4) of this subparagraph,

5 (2) the child-placing agency may place a child
6 pending completion of the national criminal
7 history records search if the foster care
8 provider and every adult residing in the foster
9 family home has resided in this state for at
10 least five (5) years immediately preceding such
11 placement,

12 (3) a national criminal history records search based
13 upon submission of fingerprints to the Oklahoma
14 State Bureau of Investigation shall also be
15 completed for any adult who subsequently moves
16 into the foster family home,

17 (4) provided, however, the Director of Human Services
18 or the Director of the Office of Juvenile
19 Affairs, or a designee, may authorize an
20 exception to the fingerprinting requirement for a
21 person residing in the home who has a severe
22 physical condition which precludes such person's
23 being fingerprinted, and
24

1 (5) any child care facility contracting with any
2 person for foster family home services shall
3 request the Office of Juvenile Affairs to conduct
4 a juvenile justice information system review,
5 pursuant to the provisions of Sections 2-7-905
6 and 2-7-308 of Title 10A of the Oklahoma
7 Statutes, for any child over the age of thirteen
8 (13) years residing in the foster family home,
9 other than a foster child, or who subsequently
10 moves into the foster family home. As a
11 condition of contract, the child care facility
12 shall obtain the consent of the parent or legal
13 guardian of the child for such review.

14 b. The provisions of this paragraph shall not apply to
15 foster care providers having a contract or contracting
16 with a child-placing agency, the Department of Human
17 Services or the Office of Juvenile Affairs prior to
18 September 1, 1998. Such existing foster care
19 providers shall comply with the provisions of this
20 section, until otherwise provided by rules of the
21 Department or by law.

22 2. a. (1) On and after September 1, 1998, except as
23 otherwise provided in divisions (2) and (4) of
24 this subparagraph, prior to contracting with a

1 foster family home for placement of any child who
2 is in the custody of the Department of Human
3 Services or the Office of Juvenile Affairs, each
4 Department shall complete a foster parent
5 eligibility assessment, pursuant to the
6 provisions of the Oklahoma Child Care Facilities
7 Licensing Act, for such foster family applicant.
8 In addition, except as otherwise provided by
9 divisions (2) and (4) of this subparagraph, the
10 Department shall complete a national criminal
11 history records search based upon submission of
12 fingerprints for any adult residing in such
13 foster family home.

14 (2) The Department of Human Services and Office of
15 Juvenile Affairs may place a child pending
16 completion of the national criminal history
17 records search if the foster care provider and
18 every adult residing in the foster family home
19 has resided in this state for at least five (5)
20 years immediately preceding such placement.

21 (3) A national criminal history records search based
22 upon submission of fingerprints conducted by the
23 Oklahoma State Bureau of Investigation shall also
24

1 be completed for any adult who subsequently moves
2 into the foster family home.

3 (4) The Director of Human Services or the Director of
4 the Office of Juvenile Affairs or their designee
5 may authorize an exception to the fingerprinting
6 requirement for any person residing in the home
7 who has a severe physical condition which
8 precludes such person's being fingerprinted.

9 b. The provisions of this paragraph shall not apply to
10 foster care providers having a contract or contracting
11 with a child-placing agency, the Department of Human
12 Services or the Office of Juvenile Affairs prior to
13 September 1, 1998. Such existing foster care
14 providers shall comply with the provisions of this
15 section, until otherwise provided by rules of the
16 Department or by law.

17 3. The Department of Human Services or the Office of Juvenile
18 Affairs shall provide for a juvenile justice information system
19 review pursuant to Section 2-7-308 of Title 10A of the Oklahoma
20 Statutes for any child over the age of thirteen (13) years residing
21 in a foster family home, other than the foster child, or who
22 subsequently moves into the foster family home.

23 C. The Department or the Board of Juvenile Affairs shall
24 promulgate rules to identify circumstances when a criminal history

1 records search or foster parent eligibility assessment for an
2 applicant or contractor, or any person over the age of thirteen (13)
3 years residing in a private residence in which a child care facility
4 is located, shall be expanded beyond the records search conducted by
5 the Oklahoma State Bureau of Investigation or as otherwise provided
6 pursuant to this section.

7 D. Except as otherwise provided by the Oklahoma Children's Code
8 and subsection F of this section, a conviction for a crime shall not
9 be an absolute bar to employment, but shall be considered in
10 relation to specific employment duties and responsibilities.

11 E. 1. Information received pursuant to this section by an
12 owner, administrator, or responsible entity of a child care
13 facility, shall be maintained in a confidential manner pursuant to
14 applicable state and federal laws.

15 2. The information, along with any other information relevant
16 to the ability of the individual to perform tasks that require
17 direct contact with children, may be released to another child care
18 facility in response to a request from the child care facility that
19 is considering employing or contracting with the individual unless
20 deemed confidential by state and federal laws.

21 3. Requirements for confidentiality and recordkeeping with
22 regard to the information shall be the same for the child care
23 facility receiving the information in response to a request as those
24

1 provided for in paragraph 1 of this subsection for the child care
2 facility releasing such information.

3 4. Information received by any facility certified by the Office
4 of Juvenile Affairs may be released to another facility certified by
5 the Office if an individual is being considered for employment or
6 contract, along with any other relevant information, unless the
7 information is deemed confidential by state or federal law. Any
8 information received by the Office shall be maintained in a
9 confidential manner pursuant to applicable state and federal law.

10 F. 1. It shall be unlawful for individuals who are required to
11 register pursuant to the Sex Offenders Registration Act to work with
12 or provide services to children or to reside in a child care
13 facility and for any employer who offers or provides services to
14 children to knowingly and willfully employ or contract with, or
15 allow continued employment of or contracting with individuals who
16 are required to register pursuant to the Sex Offenders Registration
17 Act. Individuals required to register pursuant to the Sex Offenders
18 Registration Act who violate any provision of Section 401 et seq. of
19 this title shall, upon conviction, be guilty of a Class D1 felony
20 offense punishable by incarceration as provided for in subsections B
21 through F of Section 20N of Title 21 of the Oklahoma Statutes, or a
22 fine of not more than Five Thousand Dollars (\$5,000.00), or both
23 such fine and imprisonment.

1 2. It shall be unlawful for an individual who is the
2 perpetrator of a substantiated finding by the Department of heinous
3 and shocking abuse by a person responsible for a child's health,
4 safety, or welfare, as those terms are defined in Section 1-1-105 of
5 Title 10A of the Oklahoma Statutes, to work with or provide services
6 to children or to reside in a child care facility and for any
7 employer who offers or provides services to children to knowingly
8 and willfully employ or contract with, or allow continued employment
9 of or contracting with such individual.

10 3. Upon a determination by the Department of any violation of
11 the provisions of this section, the violator shall be subject to and
12 the Department may pursue:

- 13 a. an emergency order,
- 14 b. license revocation or denial,
- 15 c. injunctive proceedings,
- 16 d. an administrative penalty not to exceed Ten Thousand
17 Dollars (\$10,000.00), and
- 18 e. referral for criminal proceedings.

19 4. In addition to the penalties specified by this section, the
20 violator may be liable for civil damages.

21 SECTION 3. This act shall become effective November 1, 2026.

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23 60-2-3974 BRC 4/20/2026 8:44:33 AM
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